

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

Circuit Court Case No. _____

IN RE: Expungement of Record of:

Magistrate Court Case No. _____

Conviction Date: _____

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner (First/Middle/Last)

Address: 1188 Upper Notch Crossing Road, Apartment 14B DOB: ____ / ____ / ____ Phone No. (681) 555-0199 ext. 4417

SSN: XXX-XX-____

**PETITION FOR EXPUNGEMENT OF MISDEMEANOR VIOLATIONS
AND TRAFFIC CITATIONS**

W. Va. Code §61-11-26 and §61-11-26(a)

Comes now the petitioner, pro se, pursuant to §61-11-26 and/or §61-11-26a to expunge the following misdemeanors in the above referenced case:

CHARGE: _____	CASE NO.: _____
CHARGE: _____	CASE NO.: _____
CHARGE: _____	CASE NO.: _____
CHARGE: _____	CASE NO.: _____

In Support of this Petition, the Petitioner states as follows:

- The charge(s) noted above are not excluded under §61-11-26(c).
- Petitioner has no pending charges at this time.
- Petitioner has completed eligibility requirements for expungement as prescribed by one of the below:

☐ For the expungement under WV Code §61-11-26 of a single above listed and described misdemeanor conviction or traffic citations(s), one year has passed since the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____.

☐ For the expungement under WV Code §61-11-26 of multiple above listed and described misdemeanor convictions or traffic citation(s), two years have passed since any conviction and the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____.

☐ For the expungement under WV Code §61-11-26 of a single above listed and described misdemeanor conviction or traffic citation(s), where the petitioner satisfies the requirements of §61-11-26a(1) or §61-11-26a(2), or both, if applicable, following the completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____. **Petitioner must provide documentation required under §61-11-26a(b).**

☐ For the expungement under WV Code §61-11-26 of multiple above listed and described misdemeanor convictions or traffic citation(s), where the petitioner satisfies the requirements of §61-11-26a(1) or §61-11-26a(2), or both, if applicable, one year has passed since any conviction and completion of petitioner's sentence and any period of supervision. The date of eligibility is: _____. **Petitioner must provide documentation required under §61-11-26a(b).**

d. Petitioner's current name, previous names, and all aliases:

e. All of petitioner's addresses from the date of offense to current:

f. Date of arrest: _____

g. Petitioner was convicted on the following charges:

h. Name(s) of victim(s) if applicable:

i. Is there a current order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

☐ Yes (If yes, attach copy of order to this petition)

☐ No

Was there a prior order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

☐ Yes

☐ No

j. The Court's verdict and punishment imposed was:

k. Grounds for expungement request, including but not limited to employment or licensure purposes (please explain in detail):

l. Steps petitioner has taken since the time of the offense towards personal rehabilitation, including treatment, work, or other personal history that demonstrates rehabilitation (please explain in detail):

m. Has petitioner ever been granted expungement or similar relief regarding a criminal conviction by any court in this state, in any other state, or by any federal court?

☐ Yes

☐ No

n. Petitioner has attached any supporting documentation, sworn statements, affidavits, and/or other information supporting the petition to expunge.

Wherefore, pursuant to WV Code §61-11-26, the petitioner respectfully requests that this Honorable Court expunge the conviction(s), and the records associated therewith, as provided in this petition.

Signature of Petitioner

VERIFICATION

I, _____ after making an oath or affirmation to tell the truth, say that the facts I have stated in this Petition are true to the best of my personal knowledge and belief; and if I have provided information given to me by others, I believe that information to be true.

Signature of Petitioner

Date

This Verification was sworn to or affirmed before me on the _____ day of _____, 20____.

Notary Public/Other Official

My commission expires: _____.

CERTIFICATE OF SERVICE

I, _____, do hereby certify that I have, on this _____ day of _____, 20_____, given a true and correct copy of the foregoing Petition For Expungement Of Criminal Records as Provided Under W.Va. Code § 61-11-26 and/or West Virginia Code §61-11-26(a) with all attached supporting documentation to:

1. The Superintendent of the State Police, at

2. The _____ County Prosecuting Attorney's Office, at

3. The Chief of Police (or other Executive Head of the Municipal Police Department where the offense(s) were committed, at

4. The Chief Law Enforcement Officer of any other Law Enforcement Agency which participated in the arrest (if applicable), at

5. The Superintendent or Warden of any institution in which Petitioner was confined (if applicable) at

6. The Circuit Court that disposed of the Petitioner's criminal charges (if applicable) at

7. The Magistrate Court that disposed of the Petitioner's criminal charges (if applicable) at

8. The Municipal Court that disposed of the Petitioner's criminal charges (if applicable) at

By the following method:

☐ First Class Mail

☐ Hand Delivery

☐ Certified Mail - Return Receipt

Date

Signature of Petitioner

IN THE CIRCUIT COURT OF _____ COUNTY, WEST VIRGINIA

Magistrate Court Case No. _____

Circuit Court Case No. _____

IN RE: Expungement of Record of:

Conviction Date: _____

Maria-Alejandra O'Shaughnessy-Whitfield

Petitioner (First/Middle/Last)

Address: 1188 Upper Notch Crossing Road, Apartment 14B DOB: ____ / ____ / ____ Phone No. (681) 555-0199 ext. 4417

SSN: XXX-XX-____

PETITION FOR EXPUNGEMENT OF FELONY VIOLATIONS

W. Va. Code §61-11-26 and §61-11-26a

Comes now the petitioner, pro se, pursuant to §61-11-26 and/or §61-11-26a to expunge the following felonies in the above referenced case:

CHARGE: _____ CASE NO.: _____

CHARGE: _____ CASE NO.: _____

CHARGE: _____ CASE NO.: _____

CHARGE: _____ CASE NO.: _____

In Support of this Petition, the Petitioner states as follows:

a. The charge(s) noted above are not excluded under §61-11-26(c).

b. Petitioner has no pending charges at this time.

c. Petitioner has completed eligibility requirements for expungement as prescribed by one of the below:

☐ For the expungement under WV Code §61-11-26 of a single above listed and described felony conviction, five years have passed since the completion of petitioner's sentence and any period of supervision. The date of completion was: _____.

☐ For the expungement under WV Code §61-11-26 of multiple above listed and described felony convictions, all the charges arose from the same transaction and five years have passed since any conviction and the completion of petitioner's sentence and any period of supervision. The date of completion was: _____.

☐ For the expungement under WV Code §61-11-26a of a single above listed and described felony conviction, where the petitioner satisfies the requirements of §61-11-26a(a)(1) or §61-11-26a(a)(2), or both, if applicable, three years have passed following the completion of petitioner's sentence and any period of supervision. The date of completion was: _____

Petitioner must provide documentation required under §61-11-26a(b).

☐ For the expungement under WV Code §61-11-26a of multiple above listed and described felony convictions, where the petitioner satisfies the requirements of §61-11-26a(a)(1) or §61-11-26a(a)(2), or both, if applicable, three years have passed since any conviction and completion of petitioner's sentence and any period of supervision. The date of completion was: _____

Petitioner must provide documentation required under §61-11-26a(b).

d. Petitioner's current name, previous names, and all aliases:

e. All of petitioner's addresses from the date of offense to current:

f. Date of arrest:

g. Petitioner was convicted on the following charges:

h. Name(s) of victim(s) if applicable:

i. Is there a current order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

☐ Yes (If yes, attach copy of order to this petition)

☐ No

Was there a prior order for restitution, protection, restraining order or other no contact order prohibiting the petitioner from contacting victim(s)?

☐ Yes

☐ No

j. The Court's verdict and punishment imposed, was:

k. Grounds for expungement request, including but not limited to employment or licensure proposes (please explain in detail):

l. Steps petitioner has taken since the time of the offense towards personal rehabilitation, including treatment, work, or other personal history that demonstrates rehabilitation (please explain in detail):

m. Has petitioner ever been granted expungement or similar relief regarding a criminal conviction by any court in this state, in any other state, or by any federal court?

☐ Yes (If yes, attach copy of order to this petition)

☐ No

n. Petitioner has attached any supporting documentation, sworn statements, affidavits, and/or other information supporting the petition to expunge.

Wherefore, pursuant to WV Code §61-11-26, the petitioner respectfully request that this Honorable Court expunge the conviction(s) and the records associated therewith as provided in this petition.

Signature of Petitioner

VERIFICATION

I, _____ after making an oath or affirmation to tell the truth, say that the facts I have stated in this Petition are true to the best of my personal knowledge and belief; and if I have provided information given to me by others, I believe that information to be true.

(Signature of Petitioner)

Date

This Verification was sworn to or affirmed before me on the _____ day of _____, 20____.

Notary Public/Other Official

My commission expires: _____.

CERTIFICATE OF SERVICE

I, _____, do hereby certify that I have on this _____ day of _____, 20_____, given a true and correct copy of the foregoing Petition For Expungement Of Criminal Records as Provided Under W.Va. Code §61-11-26 and/or West Virginia Code §61-11-26(a) with all attached supporting documentation to:

1. The Superintendent of the State Police, at

2. The _____ County Prosecuting Attorney Office, at

3. The Chief of Police (or other Executive Head of the Municipal Police Department where the Offense(s) were Committed, at

4. The Superintendent or Warden of any Institution in which Petitioner was confined (if applicable, at

5. The Circuit Court that disposed of the Petitioner's criminal charges (if applicable) at

6. The Magistrate Court that disposed of the Petitioner's criminal charges (if applicable) at

7. The Municipal Court that disposed of the Petitioner's criminal charges (if applicable) at

By the following method:

- ☐ First Class Mail
- ☐ Hand Delivery
- ☐ Certified Mail - Return Receipt

Date

Signature of Petitioner

IN THE CIRCUIT COURT OF COUNTY, WEST VIRGINIA

IN RE: Expungement of Record of: Maria-Alejandra O'Shaughnessy-Whitfield
Circuit Court Case No.

PETITIONER'S SUPPLEMENTAL PLEADING UNDER W. VA. CODE SEC. 61-11-26a(b)

This pleading is filed with the petitioner's official petition for expungement and supplies the documentation that Section 61-11-26a(b) requires to be included in that petition. It is not a substitute for the petition and is not filed on its own.

Petitioner: Maria-Alejandra O'Shaughnessy-Whitfield
Address: 1188 Upper Notch Crossing Road, Apartment 14B
Unincorporated Township of Long Hollow Crossing, West Virginia 26501-2214
Telephone: (681) 555-0199 ext. 4417

1. Which limb of Section 61-11-26a(a) the petitioner relies on:
(write TREATMENT, JOB READINESS, or BOTH - whichever describes what you are relying on. Only you know which)

2. Compliance with an approved substance abuse treatment or recovery and counselling programme.
From the packet record, in its own words:

Obtain Documentation of compliance with an approved substance abuse treatment or recovery and counselling programme. Ask the programme provider for written documentation of your compliance, covering the dates you were in the programme, and ask them to confirm in writing that the programme is approved by the Secretary of the Department of Health. Section 61-11-26a(b)(1) requires this to be included in the petition.

Obtained from: The treatment or recovery programme provider, which must be approved by the Secretary of the Department of Health

Programme name:

Approved by:

Dates of compliance:

Only on the treatment branch, where Sec. 61-11-26a(a)(1) requires a medically documented history of substance abuse alongside compliance.

Medically documented history of substance abuse:

3. Graduation from an approved job readiness adult training course.

From the packet record, in its own words:

Obtain Certificate of graduation from an approved job readiness adult training course. Ask the course provider for your certificate of graduation and for written confirmation that the course is approved by the West Virginia Department of Education. Section 61-11-26a(b)(2) requires the certificate to be included in the petition.

Obtained from: The course provider, under a West Virginia Department of Education approved course

Course name:

Provider and approval:

Date of graduation:

4. Eligibility clock. The route record for this petition states it as follows:

"ninety days of programme compliance OR completion of an approved job readiness adult training course, or both where applicable; the accelerated clock replaces the Sec. 61-11-26(b)(1) one-year wait for a single misdemeanour"

5. Documents attached to this pleading:

.....

.....

(list what you are actually attaching, from the checklist in this packet)

Signature requirement, from the route record: "The petitioner signs the petition and the supplemental pleading, swears the verification before a notary public or other official, and signs and dates the certificate of service."

Signature of Petitioner

Date

This pleading was prepared from the petitioner's own details and from the packet record. Every blank above is the petitioner's to complete before filing. Nothing on this page is sworn until the petitioner signs it.

RECORDS CHECKLIST

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

Every item below comes from this packet's own record of what the filing needs. Tick each one when you actually have it in your hand. LegalEase does not see, hold or assess any of these documents.

1. ☐ Obtain Documentation of compliance with an approved substance abuse treatment or recovery and counselling programme. Ask the programme provider for written documentation of your compliance, covering the dates you were in the programme, and ask them to confirm in writing that the programme is approved by the Secretary of the Department of Health. Section 61-11-26a(b)(1) requires this to be included in the petition.

Where to get it: The treatment or recovery programme provider, which must be approved by the Secretary of the Department of Health

When it applies: Only where the participant relies on treatment or recovery compliance under Sec. 61-11-26a(a).

2. ☐ Obtain Certificate of graduation from an approved job readiness adult training course. Ask the course provider for your certificate of graduation and for written confirmation that the course is approved by the West Virginia Department of Education. Section 61-11-26a(b)(2) requires the certificate to be included in the petition.

Where to get it: The course provider, under a West Virginia Department of Education approved course

When it applies: Only where the participant relies on job readiness graduation under Sec. 61-11-26a(a).

3. ☐ Obtain Medical documentation of a history of substance abuse. Ask your treating clinician or the treatment provider for records documenting the history of substance abuse. LegalEase does not see, hold or assess these records; you attach them to the petition yourself.

Where to get it: The treating clinician, treatment provider or medical records department

When it applies: Only on the treatment branch, where Sec. 61-11-26a(a)(1) requires a medically documented history of substance abuse alongside compliance.

4. ☐ Obtain Certified disposition, judgment order and sentencing order for every conviction. Ask the clerk of the county of conviction for certified copies for each case, and check the dates against the answers you gave us.

Where to get it: Circuit or magistrate clerk of the county of conviction

Then check your own answers against those documents:

☐ Check your answer to "Over what dates were you in compliance with that programme?" against Documentation of compliance with an approved substance abuse treatment or recovery and counselling programme, and correct the packet if they disagree.

☐ Check your answer to "What is the name of the job readiness adult training course you graduated from, and on what date did you graduate?" against Certificate of graduation from an approved job readiness adult training course, and correct the packet if they disagree.

☐ Check your answer to "Do you have a medically documented history of substance abuse?" against

Medical documentation of a history of substance abuse, and correct the packet if they disagree.

☐ Check your answer to "List each conviction you want cleared: the offence, the Code section, the county, the court, the case number and the date of conviction." against Certified disposition, judgment order and sentencing order for every conviction, and correct the packet if they disagree.

And complete these by hand before filing:

☐ Rehabilitation statement - SCA-C906 page 2 item 1, or SCA-C907 page 2 item 1.

☐ The characterisation of a felony as nonviolent - SCA-C907, page 1, eligibility recitals, where the felony branch is used.

☐ Petitioner's signature, verification signature, date and notarial block - Petition signature block and verification page of whichever official form is used.

☐ Recipient street addresses, delivery-method election, certificate of service date and signature - Certificate of service page of whichever official form is used.

☐ Circuit court case number - Caption block of whichever official form is used.

If any document above disagrees with what you told us, the document is right and the packet is wrong. Correct the packet before you sign anything.

FILING INSTRUCTIONS

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHICH PETITION YOU FILE. This packet contains two official petitions and you file exactly one.

SCA-C906: Used where the convictions to be expunged are misdemeanours or traffic citations, whether one or several.

SCA-C907: Used instead where the conviction to be expunged is a nonviolent felony under Sec. 61-11-26a(a)(3).

The packet does not choose between them. Whether a felony is a nonviolent felony is a legal characterisation of your own record, and the packet record names it a manual completion item. File the one that fits and leave the other out.

WHERE IT GOES.

"The circuit court or circuit courts in which the conviction or convictions occurred, Sec. 61-11-26a(a)."

WHAT IT COSTS.

"The \$100 State Police processing fee otherwise required by Sec. 61-11-26(n) is waived on a Sec. 61-11-26a petition."

"The circuit clerk charges the Sec. 59-1-11(a)(1) civil-action fee, which the official text sets at \$200."

"The \$100 State Police processing fee is waived by Sec. 61-11-26a(c). The \$200 circuit clerk civil filing fee is not waived by the section."

SIGNING AND SWEARING.

"The petitioner signs the petition and the supplemental pleading, swears the verification before a notary public or other official, and signs and dates the certificate of service."

Notarisation: "Required on the verification page of whichever official petition is used."

SERVICE.

"The petitioner serves the five Sec. 61-11-26(e) recipients. The prosecuting attorney serves identified victims."

The certificate of service page of whichever petition you file lists the recipients the form itself names, and you write each address. Complete and sign that page on the day you actually serve, not before.

FILING.

"File the verified official petition - SCA-C906 for misdemeanours and traffic citations, SCA-C907 for a nonviolent felony - with the Sec. 61-11-26a supplemental pleading, the verification notarised and the certificate of service completed, with the clerk of the circuit court of the county of conviction, once the applicable accelerated period has run."

IF IT IS OPPOSED.

"If a victim or the prosecuting attorney files a notice of opposition, or the court sets the matter for hearing, automated assistance ends and the participant needs a lawyer. The initial packet still generates."

WHAT THIS PACKET IS NOT. It is a prepared copy of official West Virginia forms with a supplemental pleading. It is not legal advice, it is not filed for you, and it does not decide whether your record can be expunged. A circuit judge decides that.